

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2025CUBT045643: HARLAN WERNER, et al. vs ALYSSA CROSBY, AS EXECUTOR
OF THE WILL OF DANIEL CROSBY, DECEASED**

08/19/2026 in Department 21

**Motion to Compel Further Verified Responses to Special Interrogatories, Set Four, and
and Motion to Compel Further Verified Responses to Requests for Production of
Documents to Harlan Werner and Request for Sanctions for each motion**

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motions:

- (1) Defendant/Cross-Complainant Alyssa Crosby’s (“Crosby”) Motion to Compel Further Verified Responses to Special Interrogatories (Set Four), to Plaintiff Harlan Werner (“Werner”), and Request for Sanctions of \$1,560.**
- (2) Defendant/Cross-Complainant Crosby’s Motion to Compel Further Verified Responses to Request for Production of Documents (Set 2), to Plaintiff Werner, and Request for Sanctions of \$3,060.**

Tentative Ruling:

Special Interrogatory (“SI”) Nos. 73 and 74

Defendant/Cross-Complainant Crosby’s Motion to Compel Further Verified Responses to SI Nos. 73-74, is DENIED. Although objections are asserted, Plaintiff responds to the interrogatories by providing the names and contact information for the individuals identified.

Crosby’s request for sanctions is DENIED.

Werner’s request for sanctions is DENIED. The objections asserted were voluminous and substantially improper, although Werner ultimately provided responses. Under the circumstances sanctions would be unjust.

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Requests for Production (“RPD”) Nos. 18-35

Defendant/Cross-Complainant Crosby’s Motion to Compel Further Verified Responses to RPD of Documents is GRANTED. Plaintiff is ordered to serve verified, code-compliant further responses to the RPD, without objection (except for the attorney-client privilege and attorney work product objections), within 20 days.

Plaintiff is further ordered to produce a privilege log for each document withheld on the basis of the privilege objections.

Analysis:

The party served with a request for production of documents is obligated to provide one of three responses: (1) a statement of compliance, which includes the actual documents (organized and labeled or as they are kept in the usual course of business) or a clear indication as to when and how the documents will be provided; (2) a statement of noncompliance based on inability, confirming a “diligent search and reasonable inquiry” and the reason for the inability, to wit: the documents never existed, were lost/destroyed, or in the possession of someone inaccessible; or (3) a statement of noncompliance based on objection, which must describe responsive documents and set forth “clearly” the specific grounds for the objection. CCP §§ 2031.210-2031.280.

Just as with other forms of discovery, boilerplate objections are not permitted for document requests. Pursuant to CCP §2031.240(b), “if the responding party objects to the demand, the response shall do both of the following: (1) identify with particularity any document falling within any category of item in the demand to which an objection is being made; [and] (2) set forth clearly the extent of, and the specific ground for, the objection ... the response shall provide sufficient factual information for other parties to evaluate the merits of that [objection].” Werner’s responses do not comply. As such, code-compliant responses must be provided.

A statement of compliance must conform to the following:

A statement that the party to whom a demand for inspection, copying, testing, or sampling has been directed will comply with the particular demand shall state that the production, inspection, copying, testing, or sampling, and related activity demanded, will be allowed either in whole or in part, and that all documents or things in the demanded category that are in the possession, custody, or control of that party and to which no objection is being made will be included in the production.

(CCP, § 2031.220.)

Plaintiff has not provided code compliant responses.

The motion to compel further responses is GRANTED. Because this Court cannot tell from the papers whether the moving party still needs a further response to 18-35, or just 19-29 (referenced by Plaintiff in the Joint Declaration filed 8/10/26), this Court will err on the side of caution and order further responses within 30 days to all RPDs.

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Counsel's request for sanctions is DENIED. Crosby filed this motion without first attempting to meet and confer by telephone, videoconference, or in person. Plaintiff shall provide code-compliant further responses within 20 days.

Counsel for Crosby to give notice within two (2) court days.